



CHAPTER 2.

An Act to amend the Law as to the Jurisdiction of Prize Courts in the case of proceedings against persons in His Majesty's Naval Service or in the employment of the Admiralty, and as to the transfer of Proceedings in Prize. A.D. 1916.
[2nd March 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. So much of section fifty-one of the Naval Prize Act, 1864, as provides that actions and proceedings against any person in His Majesty's Naval service or in the employment of the Admiralty shall not be brought or instituted elsewhere than in the United Kingdom shall, so far as not already repealed by the Public Authorities Protection Act, 1893, be repealed, and such repeal shall take effect as from the fourth day of August, nineteen hundred and fourteen.

Proceedings in Prize Courts against naval officers, &c.
27 & 28 Vict. c. 25.
56 & 57 Vict. c. 61.

2. Section one of the Prize Courts Act, 1915 (which relates to the transfer of proceedings against a ship or cargo from one prize court to another), shall be extended so as to apply, with the necessary modifications, to all proceedings pending at any time in a prize court, whether or not the proceedings are against any ship or cargo :

Extension of powers to transfer proceedings in Prize Courts.
5 & 6 Geo. 5. c. 57.

Provided that where the proceedings are against a person in the service of His Majesty, or of the Government of any part of His Majesty's Dominions, or of any Government department, the court shall (except in the case of proceedings in the High Court of Justice in England) on the application of the

A.D. 1916. proper officer of the Crown, make an order transferring the proceedings to another prize court, and the said section one, as amended by this section, shall have effect accordingly.

Short title. **3.** This Act may be cited as the Naval Prize (Procedure) Act, 1916, and the Naval Prize Acts, 1864 to 1915, and this Act may be cited together as the Naval Prize Acts, 1864 to 1916.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.